THE HONORABLE ROBERT J. BRYAN

UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF WASHINGTON

AILA CURTIS, *et al.*,

Plaintiffs,

v.

PEACEHEALTH, LIZ DUNNE, DOUG KOEKKOEK, AND GOV. JAY INSLEE,

Defendants.

Case No. 3:23-CV-05741-RJB

PEACEHEALTH DEFENDANTS' SUPPLEMENTAL BRIEFING RE *MANEY v. BROWN*

In response to the Court's Order seeking supplemental briefing on the impact of *Maney v. Brown*, No. 22-35218, No. 22-35219, 2024 WL 371574 (9th Cir. Feb. 1, 2024), on Plaintiffs' proposed claim under the PREP Act, Defendants PeaceHealth, Liz Dunne, and Doug Koekkoek (collectively, "PeaceHealth") address why *Maney* makes clear that Plaintiffs' proposed PREP Act claim is futile. As a threshold matter, the Court already concluded that PeaceHealth is not a state actor and thus "cannot be subject to liability through Section 1983." Dkt. 41 at 12. *Maney* does nothing to alter this conclusion or create a different basis for liability against PeaceHealth.

The PREP Act allows the Secretary of Health and Human Services to authorize "covered countermeasures" to act against a "public health emergency." 42 U.S.C. § 247d-6d(b)(1). Here, Plaintiffs' proposed claim is asserted against both Governor Inslee and PeaceHealth, though the factual allegations are not specific to PeaceHealth. *See* Proposed 2d Am. Compl. (Dkt. 38-2) ¶¶ 274-87. Plaintiffs allege a deprivation of due process rights attributable to Proclamation 24-

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14.1 and "unconstitutional conditions" imposed by "Governor Inslee's Proclamation." *Id.* ¶¶ 278, 286. But as is clear under the PREP Act and reiterated by *Maney*, the PREP Act does not confer a right enforceable through 42 U.S.C. § 1983 or a cause of action available to Plaintiffs. Rather, the PREP Act has the opposite of Plaintiffs' desired effect by creating "immun[ity] from suit and liability under Federal and State law" for a "covered person" in connection with "the administration to or the use by an individual of a covered countermeasure."[1] 42 U.S.C. § 247d-6d(a)(1). In other words, the PREP Act largely creates an immunity defense—not a cause of action. *Maney*, 2024 WL 371574, at *2, *3-4 ("The statute gives 'covered person[s]' immunity 'from suit and liability' for claims 'caused by, arising out of, relating to, or resulting from the administration to or the use by an individual of a covered countermeasure.'" (quoting 42 U.S.C. § 247d-6d(a)(1)).

Maney was brought by current and former prison inmates against both the Governor of Oregon and the Director of the Oregon Health Authority (the "OHA"). *Maney*, 2024 WL 371574, at *2-3. The factual scenario is the opposite of what Plaintiffs allege here. The *Maney* plaintiffs pursued a Section 1983 claim alleging that their constitutional rights were violated due to the OAH's decision to prioritize allocation of then-scarce COVID-19 vaccines to corrections officers before inmates, who were eligible only later with the general population. *Id.* at *3. Unlike Plaintiffs' claims here, the *Maney* plaintiffs sued because they did ***not*** timely receive a COVID-19 vaccine.

On appeal, the "only issue presented" was "whether the PREP Act bars Plaintiffs' vaccine prioritization damages claim." *Id.* The Ninth Circuit concluded that the PREP Act granted immunity to the defendants and thus barred plaintiffs' suit in its entirety. This was based on two conclusions. First, the court found that "vaccine prioritization" falls "within the scope of covered claims" under the PREP Act. *Id.* at *4. This is because the PREP Act provides immunity for the "administration to or use by an individual of a covered countermeasure," which includes

[1] Plaintiffs are not "covered persons" as defined in the PREP Act. 42 U.S.C. § 247d-6d(i)(2).

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"prioritization of that countermeasure when its supply is limited." *Id.* (quoting 42 U.S.C. § 247d-6d(a)(2)(B)). Second, the Ninth Circuit found that the PREP Act's immunity extends to "constitutional claims brought under 42 U.S.C. § 1983." *Id.* at *5. Although the PREP Act may "not expressly foreclose § 1983 as a cause of action for constitutional claims, . . . Congress used terms that plainly and unambiguously define a broad scope of immunity that includes claims brought under § 1983." *Id.* at *6.

The PREP Act does contain a single exception to its broad immunity, which creates an "exclusive Federal cause of action against a covered person for death or serious ***physical*** injury proximately caused by willful misconduct . . . ." 42 U.S.C. § 247d-6d(d)(1) (emphasis added). Such a claim must "be filed and maintained only in the United States District Court for the District of Columbia" and include "an affidavit, by a physician who did not treat the person on whose behalf the complaint was filed," explaining the basis for that physician's belief that the relevant countermeasure caused the plaintiff's injuries. 42 U.S.C. § 247d-6d(e). Plaintiffs made no such filing in this case.

Applied here, *Maney* does not further Plaintiffs' purported PREP Act claim. *Maney* offers no basis for the proposition that emotional and economic damages stemming from their refusal to accept a "covered countermeasure" supports an affirmative cause of action based on the PREP Act. Nor does *Maney* ameliorate Plaintiffs' failure to comply with the various jurisdictional and pleading requirements to assert the single narrow claim available under the PREP Act. *Maney* instead serves as a reminder of the considerable breadth of immunity offered by the PREP Act, and of the PREP Act's typical application in litigation. *Maney* in no way saves—or even remotely supports—Plaintiffs' Section 1983 claim based on the PREP Act. Plaintiffs' attempt to assert such a claim remains futile, and *Maney* does not offer support for Plaintiffs' request for leave to amend to add a PREP Act claim.

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I certify that this memorandum contains 869 words, in compliance with the Local Civil Rules.

CERTIFICATE OF SERVICE

I hereby certify that on February 15, 2024, I electronically filed the foregoing with the Clerk of the Court using the CM/ECF system which will send notification of such filings to the following:

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